

		company will not complete the transaction because it will not accept a quitclaim deed and instead requires a grant deed. As a result, the transaction contemplated by the Stipulation was not completed under the agreed terms. California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) The Court declines to modify the parties' agreed-upon Stipulation. The agreed close-of-escrow date of April 30, 2026, has passed. Defendant did not complete the transaction in accordance with the terms of the Stipulation for Entry of Judgment. Accordingly, Plaintiff may proceed with enforcement of the Judgment pursuant to the terms of the Stipulation. The Court DENIES the Defendant's Motion to Enforce Agreement. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout forthwith.
13	30-2025-01533683 Luk vs. Johnson	The Court has read and considered the Defendant's Motion of Attorney's Fees (ROA 26), Plaintiff's Opposition (ROA 37), Plaintiff's Request for Judicial Notice (ROA 35), Notice of Errata (ROA 39) and Defendant's Reply to Opposition (ROA 41). The Court takes Judicial Notice of Plaintiff's Exhibits 1, 2, and 3. The Court has notice of multiple related cases to this dismissed action, including 30-2026-01545106-CU-OR-CJC, the unlimited civil case in which Ms. Johnson is suing the landlord, and 30-2026-01545785-CL-UD-CJC, an active unlawful detainer proceeding between the parties before this Court. Because this action was voluntarily dismissed by the Plaintiff before any request to set the matter for trial, and because ruling on the request would require the Court to make factual determinations regarding issues that remain pending in Case No. 30-2026-01545785-CL-UD-CJC, the Court declines to exercise its discretion to award attorney's fees under Civil Code section 1946.2(h)(1)(B). Further, by Defendant's own admission, the same damages are being sought concurrently in the unlimited civil action. The Defendant, therefore, has an adequate remedy through the pending unlimited proceeding involving the same parties. The Court DENIES the Defendant's Motion for Attorneys' Fees and Costs.
14	30-2026-01562021 Sarena Chan As Trustee Of The Sarena Chan Trust vs. Camaruta	The Court has read and considered the Defendant's Motion to Dismiss (ROA 25). The Court takes Judicial Notice of the entire court docket regarding this matter.